Shellharbour CITY COUNCIL

Policy

Development Advisory and Assessment Policy

Policy Owner: Executive Manager Statutory Planning and Certification	
Date Last Adopted: 17 December 2024	**Review Date: 17 December 2028**

1. Policy Statement/Objective(s)

Shellharbour City Council is committed to an efficient, consistent and effective development assessment service which benefits applicants that submit good quality and complete applications.

For this to occur, Shellharbour City Council is modelling its Development Advisory and Assessment services on the NSW Government's 'Development Assessment Best Practice Guide' (2017). The Guide promotes best practice principles that assist in the timely determination of development applications and recognises the following:

- The lodgement of an 'assessment ready' application allows assessment staff to focus on assessing and determining the application rather than liaising with the applicant to get the application to a standard where it can be assessed.
- Better-quality information also allows assessment staff to thoroughly appreciate the proposal and its built-form implications.
- Applications that cannot be assessed and determined based on the information submitted at lodgement are likely to have resource implications for assessments, workloads, and the satisfaction levels of applicants, assessment staff, and the community viewing applications on exhibition.

The handling of incomplete or deficient applications, and proposals that require amendments

and/or additional information requires significant resources to manage, and this creates a flow-on effect of an increase in processing times for all applications before Council, which impacts the assessment times for all other applications. Amendments to applications can also cause uncertainty within the community to what is being proposed.

The objectives of the policy are to:

- Communicate Council's operational model of the development assessment process to potential applicants.
- Provide greater transparency about the process of lodging and assessing DAs and pre-DAs.
- Support continuous improvement and enhance the effectiveness and efficiency of the development assessment process.
- To ensure that Council meets mandated obligations set by the State government, such as the DPHI's Housing Targets and the Minister's Expectations for Development Assessment.

2. Scope

This policy applies to all DAs, and pre-DAs lodged with Council

3. References

Environmental Planning and Assessment Act 1979.

Environmental Planning and Assessment Regulation 2021.

Environmental Planning and Assessment (Statement of Expectations) Order 2024.

Shellharbour Design Review Advisory Panel Policy.

4. Definitions

DA	Development application, including Section 4.55 applications to modify a development consent and Section 8.2 Reviews of a determination.
Pre-DA	Pre-development application advice.
Act	Environmental Planning and Assessment Act 1979.
Regs	Environmental Planning and Assessment Regulation 2021.
EDC	Estimated Development Cost.
DPHI	Department of Planning, Housing and Infrastructure.
DRP	Design Review Panel.
SRPP	Southern Regional Planning Panel.
L&E Court	Land and Environment Court of NSW.
DA Submission	When a DA is submitted to Council by the applicant through the planning portal.
DA Lodgement	When a submitted DA has been accepted by Council and the associated fees have been paid.

5. Variation and Review

Council reserves the right to review, vary or revoke this policy.

Review History –

Date Policy first adopted – version 1	17 December 2024

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6. Policy

6.1 Pre-Lodgement

Council offers several services aimed at ensuring the lodgement of 'assessment ready' DAs that respond to policy and compliance requirements, including:

Planning Enquiries – Council officers are available to customers during scheduled business hours, Monday to Friday to respond to queries and provide general advice regarding development assessment matters before DAs are lodged. This is a free service that aims to:

- Provide general information about the DA process
- Provide information about whether a DA is required or if development may be carried out as an exempt or complying development
- Direct customers to the relevant planning policies and/or provide general advice on any such policies.

Written Planning Advice. For targeted advice or minor development types (such as dwelling entitlements), where the applicant does not consider that a meeting is warranted, the applicant can seek written advice only. The application may also be referred to other relevant specialists within the Council, such as engineers and heritage advisors, to ensure comprehensive advice is provided. A fee is payable for this service.

Formal Pre-DA Advice – Council offers formal pre-DA advice for all forms of development. Formal pre-DA advice is strongly encouraged for the following types of developments:

- Subdivisions (aside from subdivisions to reflect existing approved development), residential flat buildings, shop-top housing, multi-dwelling housing, commercial developments including shopping centres and industrial developments
- Developments that will be determined by the SRPP
- Complex developments, including those on environmentally constrained sites (such as heritage items or sites in heritage conservation areas, sites affected by flooding or sites that contain significant vegetation, etc)
- Developments that could involve planning control variations.

Formal Pre-DA advice enables applicants to discuss development concepts with Council's experienced assessment planners and receive guidance on the key considerations related to the development.

Concept plans must be provided with an application for formal pre-DA advice. Once lodged, Council will contact the applicant to arrange a suitable meeting time.

Pre-DA meetings will be actioned within 5 business days of lodgement and payment. The meeting will be arranged for the earliest date that is mutually acceptable to the Council and the applicant usually this is at least 10 business days from lodgement to ensure Council have time to review the proposal and provide for considered views at the meeting. The relevant planning officer will issue written advice subsequent to and within 10 business days of the meeting.

6.2 DRP

Residential accommodation and commercial developments that are three or more storeys in height and other developments requiring advanced urban design assessment will typically be referred to Council's DRP. The purpose of the DRP is to provide expert and independent advice on design quality during the pre-DA advice stage. The referral of matters to the DRP will require additional time; however, it will likely result in substantial cost and time savings for assessing any subsequent DA. Council has endorsed a Design Review Advisory Panel Policy for the purpose.

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There is a fee associated with most formal pre-DA advice services, however there are no fees associated with Council's Planning Enquiry Service.

6.3 Scope and Limitations of Pre-DA Advice

The aim of the pre-DA process is to provide detailed advice on all aspects of a development proposal to ensure the key development assessment matters have been discussed/addressed and the DA is 'assessment ready' when lodged. Notwithstanding the pre-DA process, additional issues may arise post-lodgement of the DA that were not detailed in the pre-DA advice. Any such issues may require the development to be modified and/or additional information to be provided. In any instance, during the pre-DA process Council may also determine that the development cannot be supported on the site and such advice will be made clear in the pre-DA advice notes.

DAs are generally notified and/or advertised to adjoining and surrounding property owners and the public. Any issues identified in submissions received from the public may need to be addressed by the applicant and considered by Council as part of the DA assessment process.

Furthermore, many developments require approval from State government agencies. Council cannot provide specific details on the requirements of these agencies. The applicant must contact any agencies for advice before lodging a DA.

6.4 DA Submission and DA Lodgement

DAs must be submitted online via DPHI's Planning Portal. Applications submitted via the Planning Portal must contain the documentation required by Council's lodgement matrices. Once submitted, the application will be checked by Council to ensure it is complete. If the application is incomplete, it will be returned to the applicant through the Planning Portal with details of what is missing.

If the application is complete, it will be accepted for lodgement, and the Council's Application Technical team will contact the applicant to arrange payment of the application fees. The fees must be paid within 72 hours, or the application will be returned and rejected out of the Portal. A DA is only considered to be lodged once it has been checked by Council and all associated fees have been paid.

6.5 During DA Assessment

Once lodged, a DA will be assigned to a dedicated planning officer within 5 business days of lodgement.

If additional information or amendments are required for further assessment of a DA, the applicant will generally be given 14 days to provide the information to Council. If the information is not provided within 14 days, the applicant will be sent a reminder letter, e-mail or message through the Planning Portal granting a final 7 days to submit the required information, advising that the applicant risks refusal of the application if the information is not submitted.

In circumstances where significant additional information or amendments are required for larger and more complex proposals (e.g., geotechnical or traffic reports, etc.), applicants will generally be given 28 days to provide the information to Council. If the information is not provided within 28 days, the applicant may be sent a reminder letter, e-mail or message through the Planning Portal, granting a further 14 days to submit the required information advising that the applicant risks refusal of the application if the information still needs to be submitted. In the event that information still has not been provided after this 42-day period, a final seven-day extension may be provided, upon request, to submit the required information.

Council will endeavour to send consolidated and comprehensive requests for information. However, in some circumstances a preliminary assessment may identify additional information which requires an initial request for information in order to complete the assessment. This initial request for information may be followed by a comprehensive request upon completion of the detailed assessment, public exhibition and receipt of internal/external referrals.

Once Council have completed their detailed assessment of an application and issued a comprehensive request for information, applicants will be provided one opportunity to provide any

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requested additional information or amendments in support of the application. Multiple rounds of requests for information, amendments and additional information are a primary driver of longer assessment timeframes and applicant, community and Council dissatisfaction.

In the event that significant additional information or amendments are required for larger and more complex proposals (i.e., more than 14 days are required for the submission of the information), Council may charge an amended application fee in accordance with the fees and charges. A minor amendment is one which is not considered to require re-notification/advertising. A major amendment is one which requires re-notification/advertising.

If, at the end of these periods, the required information has not been received by Council, the applicant will be advised that the DA will be refused due to a lack of information or the required amendments.

The above potential requests for additional information are at the discretion of Council. Council is under no obligation to request additional information. Additional information or amended plans can only be lodged with the agreement of Council. DAs that Council deems to be unsuitable may be determined by refusal based on the information initially submitted with the DA. Applicants may be provided the opportunity to withdraw unsuitable DAs prior to Council making a determination.

6.6 Determination

There are a number of factors that can influence who the relevant determining authority is for a DA, including but not limited to the following:

- Type/form of development
- Estimated Development Cost
- Contravention of development standards.

A DA lodged with Council may be determined by any of the following authorities:

By Planning Staff Under Delegated Authority – The majority of DAs lodged with Council (over 95%) are determined by Council.

By the elected Council— The elected Council determines development that contravenes a development standard by more than 10% or certain developments that has been determined during the assessment process to be contentious or in the public interest to be determined by the elected Council.

By the Southern Regional Planning Panel – The SRPP is a panel of five members, with three members (including the Chair) appointed by the Minister for Planning and two nominated by Council. The SRPP is responsible for determining regionally significant development. Regionally significant development is generally development that has an EDC over $30 million, although for some forms of the development the threshold is as low as $5 million.

6.7 Post-Determination Options

Modification of Development Consent – After the determination of a DA, applicants that have obtained an approval have the opportunity to submit an application to modify that development consent under sections 4.55 (for approvals issued by Council) and 4.56 (for approvals issued by L&E Court) of the Act. If an applicant wishes to vary the approved plans or the conditions imposed on a development consent, they should discuss with the relevant planning officer before lodging a modification application.

Review of Determination – After a DA has been determined, the applicant can seek a review of that determination under Division 8.2 of the Act. The review may relate to certain aspects of an approval (such as conditions of consent) or the refusal of a DA. Applicants should discuss this with the relevant planning officer prior to this before lodging a review application. If the review relates to a refusal of a DA, it will be determined by another planning officer who is not subordinate to the officer who determined the original DA. A review of the determination must be completed within six months of the determination of the original DA. Accordingly, applicants need to ensure they submit their application for review promptly to ensure Council have sufficient time to complete the review (ideally,

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no less than three months should be provided to conduct a review). The decision of the original development application remains where an application for Review of Determination has not been submitted on time, and a review cannot be completed by the six-month window.

L&E Court – Notwithstanding 7.5.2 above, where a DA is refused, the applicant has a right to appeal to the L&E Court under sections 8.7 and 8.9 of the Act. In accordance with section 8.10 of the Act, the right to appeal is only available within six months after the date the decision appealed against is notified or registered on the Planning Portal or after the date of deemed refusal under section 8.11 of the Act. Refusal is deemed when Council does not determine an application within the period prescribed by the Environmental Planning and Assessment Regulation 2021.

7. Related Forms/Documents

Development Assessment Best Practice Guide

8. Attachments

Nil.

Policy Authorised by:

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